

An Update on Key Federal Policy and Needed Action

Stephanie Smith Lee
Senior Policy Advisor, National Down
Syndrome Congress (NDSC)

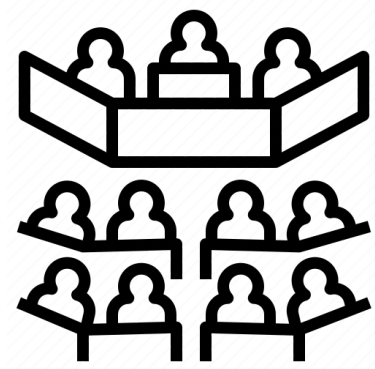
Denise M Rozell
Director of Policy Innovation
Association of University Centers
on Disabilities (AUCD)

State of the Art Conference

November 8, 2021



U.S. Congress – 117th Congress



House of Representatives

- 221 Democrats
- 213 Republicans
- 1 vacant
- 0 Independent

Senate

- 48 Democrats
- 50 Republicans
- 2 Independents

Let's Get Started: HEA?? Nope!

- The Higher Education Opportunity Act (HEOA) passed in 2008 and allows financial aid (grants and Work Study jobs) for students with ID enrolled in Comprehensive Transition Programs (CTPs), and the creation of the Transition and Postsecondary Programs for Students with Intellectual Disabilities (TPSIDs) model programs and the National Coordinating Center (NCC).
- The Higher Education Act (HEA) needs to be passed again by Congress (reauthorized) – but will not happen this year
- **So long as money is appropriated, the TPSID/NCC programs continue even if HEA is not reauthorized**

Other Education Legislation



- IDEA Funding
- Increased Pell grant \$\$
- Keep all Students Safe – restraint and seclusion
- Campus safety

TPSID/NCC/TCN Appropriations

- Currently in FY 2022 – October 1, 2021 through September 30, 2022
- Current Continuing Resolution (CR) for FY 2022 appropriations expires December 3, 2021; probably another CR coming; TPSID appropriations **flat funded in CR at \$13.8 million** for TPSID/NCC/New TA Center
- If/when Congress passes appropriations bills:

FY 21 Enacted	FY 22 Disability Request	FY 22 President's Budget Proposal	FY 22 House Bill	FY 22 Senate Labor HHS bill
\$13.8 million	\$14 million	\$15.18 million	\$15.18 million	\$15.18 million

Think College Network – New TA Center

- Where did that come from?
 - Targeting inclusive programs that are **NOT** TPSIDs
- Appropriations Committee added money
- Watching the “sausage being made”
- Almost \$2 million a year for each of 3 years
- And that \$2 million stays in the appropriations line...

What else is going on in Washington?

- Continuing resolution or Appropriations
 - Has to be passed by December 3 or the government shuts down
- Raise the debt ceiling on debt already incurred
 - Has to be raised sometime in December before the money runs out...
- Bipartisan Infrastructure bill (BIF)
 - Bipartisan agreement, Republicans and Democrats – on the way to the President's desk!
- Build Back Better – Reconciliation bill (BBB)
 - Will only be passed by the Democrats
 - When?

Bipartisan Infrastructure (BIF) – Passed House Friday November 5!

- \$110 billion to repair and rebuild roads and bridges
- \$39 billion for public transit
 - All Stations Accessibility Program (ASAP) Act of 2021(S.1680, H.R.3317)
- \$50 billion for emergency response – drought, fire etc.
- \$7.5 billion to electrify thousands of school and transit buses
- \$55 billion to eliminate the nation's lead service lines and pipes and deliver clean drinking water

Budget Reconciliation: Build Back Better (BBB)

- A \$150 billion investment in Home and Community Based Services (HCBS)
- Permanent MFP
- Permanent protection against spousal impoverishment
- \$270 million for transforming 14c – subminimum wage state grants
- Expanded money for Pell grants
- \$1 billion to support Direct Support Workforce
- Increase the SSI resource limit

Why is HCBS Funding important?

- Medicaid waiver dollars may pay for:
 - Housing
 - Pre-vocational
 - Employment supports
 - Tuition
 - Books and supplies
 - Depends on your state Medicaid waiver rules
- Self determination waivers are used for some inclusive college programs

What is 14c and why should it be eliminated?

- Created in 1938 in the Fair Labor Standards Act, allows employers with 14(c) certificates to legally pay people with disabilities less than the federal minimum wage, often times pennies on the dollar
- Section 14(c) certificates are typically used in “sheltered workshops,” where people with disabilities are segregated from the broader community.
- The vast majority of disability advocates view Section 14(c) as outdated, discriminatory, and reinforcing a life of poverty, segregation, and dependency on public support for people with disabilities.
- A growing number of states are eliminating use of 14(c)

Employment Priorities:

- Eliminate 14(c) subminimum wage in a responsible way
 - Provide grants/resources to states and providers to transition to competitive integrated employment (CIE), as outlined in the Transformation to Competitive Integrated Employment Act (H.R. 2373). 4 year phase out of certificates and no new ones.
 - What happens if \$300 million in BBB? Cannot eliminate 14c through this vehicle due to the Byrd Rule but can have state grants
- Raise the Wage - \$15 minimum wage and end of subminimum wage (H.R. 603, S. 53)

Other Possible Workforce Legislation

- Preserve WIOA definition of Competitive Integrated Employment (CIE)
 - It looked like WIOA reauthorization was going to move, but stalled. Advocates are worried about losing ground...
- Support laws and policies that create new opportunities or incentives for CIE
- Updated Department of Ed FAQ rules on location of CIE
- Apprenticeships
 - Does it include people with intellectual disabilities?

Achieving a Better Life Experience Act (ABLE)

- Achieving a Better Life Experience (ABLE) Act passed in 2014 – added Section 529A to federal tax code to create a new option for some people with disabilities and their families to save for the future, while protecting eligibility for public benefits
- ABLE beneficiaries can save more than \$2,000 assets in their name without impacting eligibility for Medicaid or Supplemental Security Income (SSI). Can save up to \$100,000, after which it is suspended (but not terminated)

ABLE Implementation and Improvements

- **ABLE Age Adjustment Act** (S 331/H.R. 1219)
 - Would increase age of onset of disability from before age 26 to before age 46
 - Would ***expand potential pool*** of enrollees for ABLE programs by 6 million and increase likelihood of ***sustainability*** of ABLE programs
 - Score = \$2.4 billion over 10 years
 - Trying to get it attached to SECURE 2.0 tax legislation in the Senate
- See ABLE National Resource Center for info on ABLE (www.ablenrc.org)

From the Administration...Just a Reminder...

- Follow up to address questions from [Addressing the Policy Tangle: Students with Intellectual Disability and the Path to Postsecondary Education, Employment and Community Living](#), Lee, Will and Rozell
- [Department of Education Guidance on Postsecondary Opportunities and Success for Students and Youth with Disabilities](#)
 - VR and pre-employment transition funds may be used for inclusive college programs
 - IDEA funds may be used for inclusive college programs with *caveats*
- Guidance: <https://www2.ed.gov/policy/speced/guid/increasing-postsecondary-opportunities-and-success-09-17-2019.pdf>

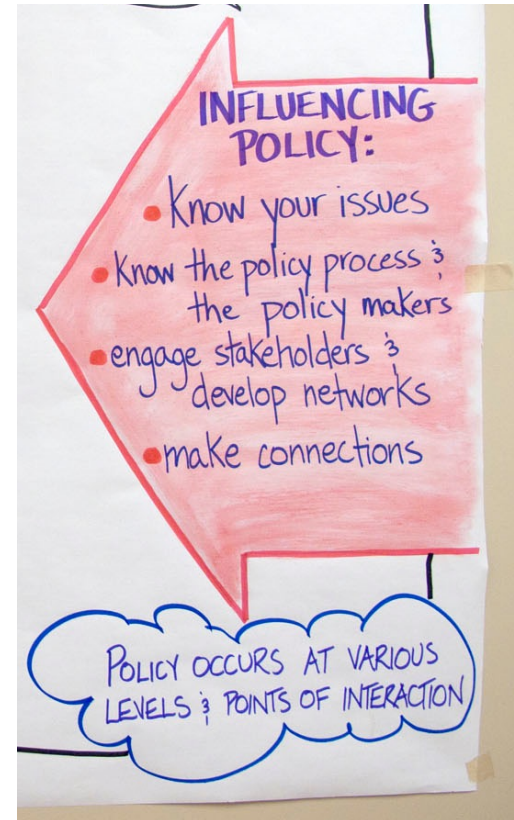
State Support

- State legislation:
 - Scholarships
 - GI Dependent Benefits
 - Alabama
 - State funding for inclusive college programs
 - Commissions and Task Forces

https://thinkcollege.net/sites/default/files/files/resources/IB42_State_Policy_Actions_Supporting_HE.pdf
- DD Council support for programs, advocacy, partnerships
 - https://thinkcollege.net/sites/default/files/files/resources/IB49_Role_of_CouncilsonDD_F4.pdf

Why Your Voice Matters!

- You have expertise and passion
- Your work and life will be impacted by policymakers' decisions
- You vote and constituents' views are important
- If you don't speak up, someone else will speak for you (or against you)
- You CAN make a difference!



What can you do?

- 1 Write letters, make phone calls and personal visits, respond to alerts
- 2 Testify at hearings and comment on regulations
- 3 Contact media (letter to editor, op ed) & use social media (twitter, etc.)
- 4 Organize and participate in coalitions
- 5 Invite Members of Congress & staff to your center/events
- 6 Say thank you and follow up

Relationships that Impact

- Schedule Meetings with Members of Congress ANY time you are in D.C. or they are in the District
- Know and keep in touch with the Legislative Correspondent and Legislative Assistant that work on your issues. Staff are important!
- Be a resource
 - Update on how policy is impacting you
 - Share data
 - Share research
 - Invite to events
- Thank and congratulate around success



Overcoming Glazed Eyes

- Tell your story tied to the policy objective
- Policy change takes time
- Building relationships matters
- Achieving a short-term goal is just as important as reaching the ultimate goal
- Sometimes prevention is success
- Celebrate your successes – no matter how small

Sign up to stay up-to-date with NDSC Policy communications!

- Join the National Down Syndrome Advocacy Coalition:
<https://www.ndsccenter.org/political-advocacy/national-down-syndrome-advocacy-coalition/>
- Action Alerts
 - <https://www.ndsccenter.org/political-advocacy/take-action-stay-informed/>
- Facebook
 - <https://www.facebook.com/dsadvocates/>
- Twitter
 - @policyupdates



**Action
Alert**

URGENT



Sign up to stay up-to-date with AUCD Policy communications!

- Weekly *Disability Policy News* Newsletter with links to an action step
 - <https://www.aucd.org//template/page.cfm?id=164> – coming back soon!
- *Tuesdays with Liz: Disability Policy for All* YouTube Channel
 - <https://www.youtube.com/playlist?list=PLEHWL7i0kECV8GSORs56oK7SP7GXHorOB>
- Emerging Advocates calls with Liz Weintraub – quarterly
 - <https://thinkcollege.net/technical-assistance/affinity-groups/advocates>
- Facebook
 - <https://www.facebook.com/AUCDnetwork/>
- Twitter
 - @AUCDNews



Think College Plain Language materials

- WIOA (Workforce Innovation and Opportunity Act of 2014)
- FERPA (Family Education Rights and Privacy Act)
- The ABLE Act (Achieving a Better Life Experience)
- Federal Financial Aid for Students with Intellectual Disabilities
 - <https://thinkcollege.net/think-college-news/critical-topics-covered-in-new-think-college-plain-language-series>
- And more to come!



[Student Corner](#) on Think College Website!

Think College Policy Advocates – New applications coming soon for the 3rd Cohort!

- **Purpose:** To train a cadre of public policy advocates knowledgeable and active in higher education policy for students with intellectual disabilities, including students themselves.
- Teams from several different IPSE programs
 - Each team comprised of a student and an IPSE program person
 - Each team must be interested in learning more about public policy and be willing to commit to a series of activities over the next year.
- **Application information will be sent soon! Look for them in January...**

Questions and Discussion



Stephanie Smith Lee stephaniesmithlee@gmail.com

Denise Rozell drozell@aucd.org